

On informed consent and open licensing

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I gave my final talk of the year, today, at the University of Leeds, on open access in the humanities disciplines. Perhaps predictably, all of the Q&A centred on open licensing and the concerns from humanists around the misuse of their work.

My basic line on all this has shifted over time, but I am more cautious now than I used to be and feel better about somewhat more restrictive CC licenses. Specifically, I do not want a situation where a colleague experiments with open access for the first time and ends up on the receiving end of a bad practice that they had not anticipated.

This comes down, to some degree, to “informed consent”. I am quite happy to take risks with my work and open licensing. I think that by being a “pioneer” I might be able to show that the risks are overblown. However, I am in no doubt as to what the risks are and what potential remedies are available. Other people in the humanities who do not know much about copyright law and also do not have the time or inclination to read and understand open licenses, are not in the same position.

I worry, though, that a lot of the advice we give around open licenses might be not providing an optimal level of informed consent. Specifically, if we say “this license allows others to share your work”, that sounds good and positive. However, the person receiving this advice may not realise that it means that others can share your work... and charge to do so. In this case, they will be surprised or even outraged when re-prints surface.

I think we need to be honest and open about the benefits and potential risks of open licensing. We need more people who *do* understand both sides of it, also, to ensure that they put themselves in the firing line, rather than insisting that others should. The -SA and, even, -NC provisions may be helpful here in mitigating some of the unintended consequences. (Although I still do not like -NC because it precludes some charities and educational institutional use.)

So this is my way of saying that I have, to some degree, changed my mind on this. I still believe that open licensing with more liberal provisions is probably a good endpoint. I still think that many of the criticisms are overblown or downright ridiculous. (Look: neo-Nazis likely don't respect copyright; an open license isn't going to help them as they'll just do what they want anyway.) But I also think that most humanities people don't understand licensing very well. So, in the interests of informed consent, the people who are using more liberal licenses should only be the ones who understand the risks. This way, over time, we will build a set of case studies for the advantages and disadvantages of more liberally licensed work – and the risk will be held only by those who were fully informed.